

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-011
Amendments to Title 5 of the Chickasaw Nation Code
(Records)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the District Court and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 2, Article B, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through):

“SECTION 5-202.13 **RECORDS.**

The District Court shall be a court of record. To preserve such records:

1. ——— ~~In all Court proceedings, the court reporter, which may be the Clerk in the absence of an official court reporter, shall record the proceedings of the Court by electronic or stenographic means. The Clerk shall maintain a record of all criminal proceedings, including making and preserving an audio or other recording of the trial proceeding. The recording shall be identified by case number and kept for five (5) years for use in appeals or collateral proceedings in which the events of the hearing are in issue. At the close of each hearing, or as otherwise specified, the reporter shall cause a transcript to be made of the recording upon the request of any party or the Court as a permanent part of the case record. Court reporters may be licensed by the Supreme Court, and shall be allowed such fees from the parties for their services as shall be set by Rule of the Supreme Court.~~

2. ——— ~~To preserve the integrity of the electronic record, the reporter shall store the recording in a safe place and release it only to the relevant Court or pursuant to an Order of a Tribal Judge or Justice.~~

3. ~~The Clerk shall keep in a file, bearing the case name and number, every written document filed in the case.~~

4. ~~All Court records shall be public records except as otherwise provided by law.~~

5. ~~After five (5) years, Court records except Judgments, appearance, and other dockets may be reproduced in digital format, on computer tape or disk, microfilm, or microfiche or similar space saving record keeping methods, provided, that at least one (1) hard copy, including microfilm or microfiche, of electronically stored data shall be kept at all times.~~

6. ~~The Supreme Court shall provide for the publication in books or similar reporters of all of its decisions and opinions in cases before it, and the opinions and decisions of the District Court which would be useful to the Bar of the Court and the public.~~
(PR18-044, 10/19/01; PR38-014, 02/22/2021)

A. Generally

1. In all Court proceedings, the court shall cause a record to be made which memorializes the nature of the proceeding by either Court Minute, Court Order, Journal Entry or by other record approved by the District Court. A verbatim record of any proceeding may be made by either digital, electronic, or stenographic means, as approved by the District Court. The District Court Clerk shall maintain all records and recordings in conformity with all rules promulgated by the District Court and all provisions set forth herein.
2. The District Court Clerk shall keep and maintain all records by establishing a file for each case which bears the case name and number. Such file shall include every written document filed in the case and all evidence properly admitted into the record. Any evidence not able to be kept in such file shall be properly identified and stored in conformity with the District Court Rules.
3. The District Court Clerk shall keep and maintain all verbatim digital and electronic recordings of each proceeding in accordance with the District Court Rules.
4. All stenographic recordings shall be kept and maintained by the Court Reporter in compliance with the District Court Rules.
5. All Court records shall be public records except as otherwise provided by law.
6. All Court records shall be maintained in a safe and secure manner in any District Court facility or storage facility, as approved by the District Court.
7. All Court records shall be maintained in accordance with the File Preservation and Destruction Policy promulgated by the Chickasaw Nation Supreme Court.

B. Civil Proceedings:

1. The Court shall cause a verbatim record to be made of all proceedings in Juvenile Deprived, Juvenile Delinquent, and Adoption matters by digital, electronic, or stenographic means.
2. In all other civil proceedings, a verbatim record made by digital, electronic, or stenographic means may be made upon the request of any party or at the Court's discretion. Such request shall be made in compliance with the District Court Rules. If a request for a verbatim record is not made by any party, it is deemed waived.

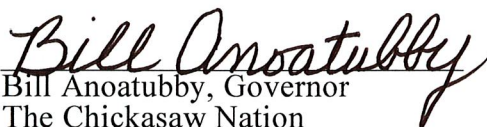
C. Criminal Proceedings:

1. All proceedings concerning felony offense(s) shall be conducted in conformity with the laws of the Chickasaw Nation, including the Chickasaw Nation's incorporation of the Indian Civil Rights Act of 1968, as amended, and all other applicable federal law.
2. The Court shall cause a verbatim record to be made by digital, electronic, or stenographic means for all trials, both Jury and Non-Jury, for any misdemeanor or felony offense(s).
3. In all other criminal proceedings, a verbatim record made by digital, electronic, or stenographic means may be made upon the request of any party or at the Court's discretion. Such request shall be made in compliance with the District Court Rules. If a request for a verbatim record is not made by any party, it is deemed waived."

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on May 17, 2024, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 17 2024

CHICKASAW TRIBAL LEGISLATURE
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(Record)

Explanation:

This resolution revises the existing District Court Rules and Procedures regarding recording of hearings.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature